

BNS 2023

Bharatiya Nyaya Sanhita, 2023

Bharatiya Nyaya Sanhita (BNS), 2023

User Query :

During an argument in the parking area of my apartment building, my neighbour hit me several times with an iron rod. I suffered a fracture and required hospital treatment. CCTV cameras recorded the incident and two residents witnessed what happened. What legal provisions may apply to this case?

Job Id. :

qwen3-30b/Scenario 6/Bharatiya Nyaya Sanhita (BNS), 2023

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Date :

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 116 — Grievous hurt

A fracture is expressly included within grievous hurt.

Section 117 (2) — Voluntarily causing grievous hurt

Relevant where grievous hurt is voluntarily caused.

Section 118 (2) — Voluntarily causing grievous hurt by dangerous weapons or means

Applies if the iron rod, as used, qualifies as an instrument which when used as a weapon of offence is likely to cause death.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The fracture makes grievous hurt central. **Section 118 (2)** is stronger than ordinary grievous-hurt liability if the manner in which the iron rod was used satisfies the dangerous-weapon requirement.

✓ STRENGTHS & RIGHTS

1 Medical evidence of fracture and eyewitness/CCTV evidence materially support the elements.

✗ RISKS & OBLIGATIONS

1 Do not automatically label every iron-rod assault as **section 118 (2)** without considering how the rod was used and the statutory dangerous-weapon test.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve medical records and identify the eyewitnesses.

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